AI Moderation vs Freedom of Speech

Freedom of Speech



Freedom of Speech is a fundamental human right recognized under international law. Freedom of Speech was first widely recognized under the Universal Declaration of Human Rights by the United Nations under Article 19.
Article 19 states that all individuals have the freedom of opinion and expression, where they are able to impart of receive information through any media regardless of frontiers.

AI Moderation and Freedom of Speech

Companies such as Meta have started to rely on AI systems to moderate content on their social media platforms. However, concerns have been expressed regarding how AI moderation may violate the rights to freedom of speech.





Content moderation has been ongoing in various social media platforms in the past as well. Moderation is, in its core, a defensive action, where victims of wrongful speech(hate speech, bigotry, terrorist content) are protected. In the EU, social media platforms are required to receive notification of harmful and illegal hate speech and, where appropriate, remove such content from their platform. By contras, in the US, the freedom of moderation is given to the individual companies, where companies are given broad discretion of how they can operate.

Research has shown that AI moderation disproportionately affects the freedom of speech rights in the global south. This may result in ‘over removal’ where the lawful content is censored without any logical reasoning, while there is slower removal elsewhere where actual harmful material is being failed to get addressed. in time.





Issues have been taken by the fact that most content moderation is determined by a incredibly homogeneous group of American elites, while social media is an increasingly large market all around the world. So content moderation relies heavily on the social/cultural norms of the United States, while many of the markets in which social media is being used in do not follow such social/cultural norms. Disparities in content moderation can come from various sources such as: cultural prejudices, inequalities and language barriers affecting the AI’s effectiveness when moderating.